

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403335	BARRAGAN VS BMW OF NORTH AMERICA, LLC	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

DENY the Motion for Summary Judgment/Summary Adjudication

BMW now moves for Summary Judgment/Summary Adjudication on this Song-Beverly Act case, arguing that Plaintiff purchased a Certified Pre-Owned (CPO) BMW, and thus Plaintiff cannot pursue a Song-Beverly action because the CPO Warranty that came with the car was not a manufacturer's new car warranty issued with the sale. The vehicle has a balance remaining on the subject vehicle's original new car warranty of 4 years or 50,000 miles. At the time the vehicle was sold to the Plaintiff, BMW issued a new CPO Warranty for 60 months and 999,999 miles.

The court denies the MSJ/MSA because Plaintiff has created a triable issue of material fact as to whether the CPO Warranty provided a *new express warranty* to Plaintiff when he purchased the vehicle. Under *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, the California Supreme Court held that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as 'a motor vehicle sold with a manufacturer's new car warranty' under section 1793.22(e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (Id. at 196.) Here, regardless of the balance on the original warranty, BMW issued a new, separate CPO Warranty with additional terms. There is a dispute of material fact as to whether the CPO Warranty provided a new express warranty. BMW's motion is denied as to the first and third causes of action.

As to the second cause of action for Breach of Implied Warranty, BMW argues that under *Rodriguez*, only distributors or sellers of used goods are liable under Civil Code § 1795.5. BMW is a manufacturer of new goods, not a distributor or seller of used goods. However, *Rodriguez* states, "...for new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not the manufacturer, at least where the manufacturer **has not issued a new warranty** or played a substantial role in the sale of a used good." (Id. at 202, emphasis added.) There is a triable issue of material fact as to whether the CPO Warranty provided a new express warranty to Plaintiff when he purchased the vehicle. The motion is Denied as to the second cause of action.